

EXHIBIT 26

TSM copy

BEFORE THE HON'BLE COURT OF THE ADDITIONAL CITY
CIVIL AND SESSIONS JUDGE AT BENGALURU

O.S No. /2025

BETWEEN

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

AND

Anirudh Reddy Edla and Anr

Defendants

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PLACE: BENGALURU

DATE: 23/4/25

ADVOCATE FOR PLAINTIFF

IN THE COURT OF THE ADDL. CITY CIVIL AND SESSIONS
JUDGE,
AT BENGALURU
IN

O.S. NO. ____/2025

BETWEEN:

Zetwerk Manufacturing Businesses Private Limited,
A company incorporated under the
Companies Act, 2013,
Having its office at:
No. 461, 1st Floor, Oriental Towers,
4th Sector, 17th Cross, HSR Layout,
Bengaluru, India - 560102
Represented by its
Authorised representative
John Tharian Thaliath

Plaintiff

AND:

1. Anirudh Reddy Edla
Aged about major
Having his residence at #16-2-741/A/1/A,
Asmanghad, Hyderabad - 500 036,
Telangana
2. Zetwerk Manufacturing USA Inc.
A corporation formed under the laws of Delaware
and having its principal place of business at
548 Market St #70774, San Francisco,
California - 94104

Defendants

MEMORANDUM OF PLAINT FILED UNDER ORDER VII RULE 1
READ WITH SECTION 26 OF THE CODE OF CIVIL PROCEDURE,

1908

The Plaintiff humbly submits as follows:

1. The address of the Plaintiff Company for purpose of service of summons and court notices is as stated in the cause title. They may also be served through their counsel.



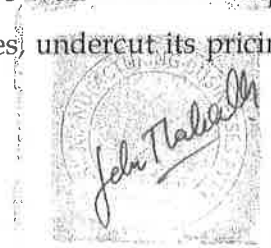
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2. The address of the Defendants for similar purposes is as stated in the cause title.
3. It is submitted that the Plaintiff is a company incorporated under the provisions of the Companies Act, 2013, having its registered office at No. 461, 1st Floor, Oriental Towers, 4th Sector, 17th Cross, HSR Layout, Bengaluru, India - 560102. The Plaintiff Company is engaged in strengthening the manufacturing eco - system in India and overseas , and are *inter-alia* involved in manufacturing, sourcing and trading of various goods and products. The Plaintiff is a pioneer in the manufacturing industry with an unbreakable supply chain and unlimited manufacturing capacity regardless of the nature of the product. The Plaintiff has garnered immense reputation in a short span of time for offering high quality production, globally competitive costs and unparalleled lead times in the manufacturing of capital goods, consumer goods and precision parts. The Plaintiff is represented by its authorised representative, John Tharian Thaliath *vide* Board Resolution dated July 1, 2022. The copy of the board resolution dated July 1, 2022 of the Plaintiff company authorizing John Tharian Thaliath is herewith produced as **Document No.1.**
4. It is submitted that since its incorporation in 2018, the Plaintiff has significantly expanded its operations across multiple industries including energy, infrastructure, aerospace, and heavy engineering, and has established itself as a key player in the global industrial manufacturing sector through its continued focus on innovation and quality and cost-effective solutions. This growth has been further driven by amongst other things:



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- i. Fostering strategic partnerships with suppliers in India and key international locations and positioning itself as a reliable partner for manufacturers worldwide – through extensive negotiations;
 - ii. Providing cost-effective, high-quality, and customized solutions by optimizing pricing models and financial strategies, developed through years of market research and operational refinement, to ensure cost efficiency and profitability;
 - iii. Conducting confidential market research and expansion strategies, including geographic assessments, competitor analyses, and business development plans, which are critical to sustained growth; and
 - iv. Deploying targeted marketing strategies and brand positioning initiatives to strengthen market penetration and customer engagement.
5. It is submitted that the Plaintiff manufactures products through its own facilities as well as through subcontractors, suppliers, etc.
6. It is submitted that the Plaintiff's sustained growth and market position are a direct result of its proprietary and confidential business information, developed through substantial financial, technological, and human capital investments. This includes but is not limited to internal research and development data, pricing strategies, supplier and customer lists, financial models, manufacturing techniques, and strategic business plans. These assets are critical to the Plaintiff's competitive advantage, and any unauthorized disclosure or misuse would allow competitors to replicate the Plaintiff's strategies, undercut its pricing, and

A handwritten signature, "John T. Talbot", is written in dark ink over a circular, faded stamp. The stamp appears to be an official seal or logo, but its details are illegible due to fading. The signature is written in a cursive style.

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disrupt established supplier and customer relationships, causing severe and irreparable harm to its market position, operational stability, and financial interests.

7. It is submitted that the Plaintiff has implemented comprehensive confidentiality safeguards, including stringent internal policies. In addition, the Plaintiff has also incorporated explicit confidentiality clauses in all employment agreements and offer letters, which require its employees to maintain the strictest confidentiality regarding all documents, records, and information related to the Plaintiff's business operations, including supplier lists, financial and technical data, vendor relationships, business forecasts, and strategic opportunities. The employment agreements and offer letters also prohibit its employees from misusing the Plaintiff's confidential information, and also restrain them from disclosing such information to third parties.
8. It is submitted that as of December 2024, the Plaintiff has raised a total funding of \$768 million over 16 rounds, with a post-money valuation of \$2.97 billion. Further, the Plaintiff reported an annual revenue of ₹14,600 crore (approximately \$1.76 billion) for the fiscal year ending March 31, 2024.
9. It is submitted that the Defendant No. 1 is the former employee of the Plaintiff. He was employed by the Plaintiff under an Appointment Letter dated March 1, 2019 as 'Director - Strategic Initiatives', and remained in employment with the Plaintiff until January 9, 2023, after which he joined Defendant No. 2 (Plaintiff's wholly-owned subsidiary) as 'Business Head'. The Plaintiff states that while gainfully employed with Defendant No. 2, Defendant No. 1 was simultaneously moonlighting with a US based entity/company named Ayr Energy Inc. ("Ayr Energy").



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Thereafter, he exited Defendant No. 2 in February 2025 and is now associated with Ayr Energy. During his employment with the Plaintiff/Defendant No. 2, Defendant No. 1 misappropriated the Plaintiff's confidential information and subsequently transferred it to Ayr Energy to facilitate and expand its business – in violation of the explicit terms of his Appointment Letter and also in breach of the trust and confidence reposed in Defendant No. 1 by the Plaintiff.

10. It is submitted that the Defendant No. 2 is a corporation formed under the laws of Delaware and has its office at the address mentioned in the cause title above. It is a wholly-owned subsidiary of the Plaintiff and is engaged in the business of manufacturing and supply chain solutions across various industries, including aerospace, defence, energy, and infrastructure – similar to the Plaintiff. Though separate and distinct legal entities, the Plaintiff and Defendant No. 2 are part of the same corporate group and shareholder structure, and maintain unified operations and strategic oversight. While the Plaintiff has not sought any substantive (or, formal) reliefs against Defendant No. 2, it has been impleaded solely as a formal party to these proceedings – to facilitate the fair and effective adjudication of the matter.

11. It is submitted that on March 1, 2019 the Defendant joined the Plaintiff's employment as 'Director – Strategic Initiatives' and continued until January 9, 2023. Per the terms of his appointment letter read with the addendum dated March 1, 2019 ("**Appointment Letter**"), the Defendant was contractually bound to maintain the highest degree of confidentiality concerning the Plaintiff's business operations. This obligation included protecting documents, records and information pertaining to procurement requirements, purchasing, manufacturing, customer lists, financial and



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technical data, vendors, vendor lists, business forecasts and opportunities, sales and merchandising, marketing plans and information regarding the business or operations of the Plaintiff or its clients ("**Confidential Information**"). Further, the Defendant was expressly restrained from using such Confidential Information for his personal gain, or disclosing it to any third party, or utilizing it in any manner other than as expressly authorized by the Plaintiff and which was not in furtherance of its business interests. The relevant portion of the Plaintiff's Appointment Letter (read with the Addendum) is reproduced herein below for easy convenience: Copy of the Appointment Letter dated 01.03.2019 is produced as **Document No.2.**

"Clause 10 (Confidentiality)

You must always maintain the highest degree of confidentiality and keep as confidential the records and documents and other confidential information relating to the business of the Company, which includes, without limitation any procurement requirements, purchasing, manufacturing, customer lists, financial and technical data, vendors, vendor lists, business forecasts and opportunities, sales and merchandising, marketing plans and information regarding the business or operations of the Company or its clients, which may be known to you or confided in you by any means and you will use such information only in a duly authorized manner in the interest of the Company. You shall comply with all of the Company's instructions for preserving its confidentiality and use confidential information only in furtherance of the Company's business. You further declare that you shall not use the confidential information for your use and personal gain or disclose the same to any third party."

(Emphasis Ours)



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12. It is submitted that in his capacity as 'Director - Strategic Initiatives', Defendant No. 1 was entrusted with significant responsibilities critical to the Plaintiff's business operations such as identifying and evaluating growth opportunities, overseeing procurement strategies, managing vendor and customer relationships and formulating strategic business plans, inter alia for its energy-related products and solutions (including, transporters, switchgear and breakers).

13. In the discharge of these duties, the Defendant No.1 was granted unrestricted access to Plaintiff's highly sensitive and Confidential Information including its trade secrets and technical know-how, pricing lists, customer and supplier data, which has been systematically compiled and refined by the Plaintiff - over the years - through substantial financial, technological, and human capital investments. Such access was given to the Defendant strictly within the scope of his employment and under the conditions of confidentiality outlined in the Appointment Letter. Additionally, given his designation and role in the Plaintiff company, the Defendant was also bound by fiduciary obligations that heightened the duty of care owed to the Plaintiff and required him to act in the best interest of the Plaintiff (by protecting and preserving the Plaintiff's Confidential Information), and to refrain from misusing, transferring, or disclosing it - whether during the course of his employment or after his resignation - for any unauthorized purpose, amongst other things.

14. However, as would be revealed subsequently, Defendant No. 1 has not only indulged in data theft of the Plaintiff's Confidential Information without its knowledge or consent while in employment of the Plaintiff, but has also unlawfully disclosed, disseminated, and/or shared this information with



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Ayr Energy after the cessation of his employment – in clear breach of his contractual and fiduciary obligations.

15. It is submitted that on January 10, 2023, Defendant No. 1 transitioned from his employment with the Plaintiff to Defendant No. 2 (a wholly-owned subsidiary of the Plaintiff under common management and control) based in the United States of America. In this regard, the Defendant No. 1 – under an Offer of Employment dated December 26, 2022 (“US Employment Letter”) – was appointed as ‘Business Head’ of Defendant No. 2 where he was gainfully employed until February 2025. As Business Head, Defendant No. 1 was entrusted with substantial responsibilities, including identifying opportunities for growth, managing procurement, handling vendor and customer relationships, and developing business strategies. Copy of the offer of Employment dated December 26, 2022 is produced as **Document No.3.**

16. It is submitted that as per the terms of his US Employment Letter, Defendant No. 1 was explicitly obligated to maintain strict non-disclosure of its ‘proprietary’ information (or confidential information concerning the business and operations of Defendant No. 2). He was also prohibited from engaging in any employment, occupation, consulting, or business activities related to the Plaintiff’s business, or any future business the Plaintiff might enter. Additionally, Defendant No. 1 was restricted from participating in any activities that could conflict with his obligations to Defendant No. 2, including the protection of its Confidential Information.

17. It is submitted that the Defendant No. 1 was appointed by the Plaintiff’s management, which also exercises control over Defendant No. 2 (collectively, “Zetwerk Group”).



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Accordingly, the decision to transition Defendant No. 1 to Defendant No. 2 company was based entirely on the trust and confidence placed in Defendant No. 1 due to his seniority within the Plaintiff's organization, and with the expectation that Defendant No. 1 would continue to act in the best interests of the Plaintiff and uphold the highest standards of integrity in the performance of his duties. As part of his relocation, the Defendant No. 2 sponsored Defendant No. 1's application for permanent residency (green card), which also clearly demonstrates the Zetwerk Group/ Plaintiff's trust in Defendant No. 1 and its intent to retain him long-term within the Zetwerk Group.

18. It is submitted that Defendant No. 1 was also granted access to Plaintiff's Confidential Information during his employment with Defendant No. 2. Though separate and distinct legal entities, the Plaintiff and Defendant No. 2 function under a 'common control' and 'management' to maintain unified operations and strategic oversight (as detailed below). This access was necessary due to the operational structure of the Plaintiff and Defendant No. 2, given that Defendant No. 2's business is largely serviced through Indian based suppliers and that Defendant No. 1 was required access to the Plaintiff's Confidential Information to ensure smooth continuity of operations. Furthermore, Defendant No. 1 was granted this access due to the shared management and ownership of the Zetwerk Group, with the expectation that (i) he would handle the Plaintiff's Confidential Information securely and responsibly, in the best interests of both Zetwerk Group and (ii) he would uphold the high standards of confidentiality and loyalty expected of him during his prior tenure with the Plaintiff.



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19. Notwithstanding, the Plaintiff has cause to believe that Defendant No. 1 has misappropriated its Confidential Information – obtained during his employment with the Zetwerk Group – without the Plaintiff's consent and has unlawfully misused it for the benefit of Ayr Energy (which is a third party to the relationship). However, the extent of Ayr Energy's access to and control over the Plaintiff's Confidential Information remains unknown and requires disclosure.

20. It is submitted that in or around February 2025, during the ordinary course of business discussions, it was informed by one of its suppliers that sometime in 2024, Defendant No. 1 – while still employed with the Zetwerk Group – approached them on behalf of Ayr Energy and sought to procure their services.

21. It is submitted that Defendant No. 1 was fully aware that the Plaintiff procured materials and services through a meticulously cultivated network of suppliers at negotiated costs – secured through long-standing business relationships built over the years. Despite this knowledge, Defendant No. 1 unlawfully exploited the Plaintiff's Confidential Information, including supplier lists, to further his own unlawful interests – by securing materials and services, possibly at the same negotiated rates extended to the Plaintiff. The Plaintiff submits that Defendant No. 1, who had no independent access to such data, could not have obtained it but for his employment with the Plaintiff.

22. It is submitted that around 2024-2025, it was in the process of acquiring one power components manufacturing company ("Power Components Company") – which is *inter alia* engaged in the business of supply of transformer raw materials, specifically CRGO laminations and tanks. The



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Plaintiff had been engaged in negotiations with the Power Components Company for an extended period and had conducted extensive due diligence, market analysis, and financial assessments – deploying significant resources and strategic planning into this potential acquisition. Defendant No. 1, by virtue of his prior employment with the Zetwerk Group, was privy to this highly Confidential Information.

23. In this context, the Plaintiff – in February 2025 – learnt from the market that that Defendant No. 1 (through Ayr Energy) was also targeting the Power Components Company for an acquisition. Notably, on March 10, 2025, Defendant No. 1 sent an email to the Plaintiff using his Ayr Energy email ID (being, anirudh@ayr.energy) and proposed a strategic purchase of the Power Components Company. In this email, Defendant No. 1 suggested that the Plaintiff could participate in the round and claimed that “the market is incredibly large and both of us are just getting started in the sector”. Copy of the email communication dated March 10, 2025 is produced as **Document No.4**.

24. It is submitted that while the Power Components Company's existence may have been publicly known, critical details such as the timing, valuation, due diligence findings, and the Plaintiff's strategic interest in acquiring the Power Components Company constituted highly confidential business intelligence. This Confidential Information was accessible to Defendant No. 1 solely due to his prior association with the Zetwerk Group, and in the absence of such association, he had no independent means of gaining access the same and/or showing interest in buying the Power Components Company. Despite this, Defendant No. 1 unlawfully misappropriated and leveraged the Plaintiff's proprietary research and commercial insights to further the



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business objectives of a third party (Ayr Energy) in which it had commercial interest.

25. In light of the aforementioned misconduct and evident *mala fide* intent, the Zetwerk Group undertook a forensic investigation into Defendant No. 1's systems, covering the period from September 2024 (when Ayr Energy was incorporated) until March 2025. This investigation has revealed that Defendant No. 1 deliberately deleted approximately 800 emails from his server right before his departure from the Zetwerk Group's employment. The forensic analysis also revealed that on the same date as the deletions, Defendant No. 1 downloaded over 250 files from the Zetwerk Group's company server – strongly indicating that he illicitly transferred Confidential Information onto an external storage device before erasing evidence of his actions. It is submitted that these preliminary findings establish that the downloaded files contained the Plaintiff's critical business documents, including invoices with supplier data, supplier contracts, and other proprietary records. The Zetwerk Group is presently conducting a detailed investigation to ascertain the full scope and extent of the compromised information.

26. It is submitted that the surreptitious and unlawful manner in which Defendant No. 1 engaged in the theft of the Plaintiff's Confidential Information, as detailed above, unequivocally establishes that he regarded this information as crucial and indispensable for his personal gains and business prospects outside of Zetwerk Group. Further, the surreptitious manner in which the data was stolen also establishes that Defendant No. 1 himself did not regard the Confidential Information as part of the knowledge and experience gained by him during the course of his employment with the Plaintiff, nor did he



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deem such Confidential Information to be so general as would be available in the public domain. Instead, his deliberate actions confirm that Defendant No. 1 recognized the proprietary and sensitive nature of the Plaintiff's Confidential Information and sought to exploit the same for his own unlawful benefit.

27. It is submitted that the Defendant No. 1 held a position of significant trust and authority within the Zetwerk Group, wherein he was inter alia tasked to develop their business of energy-related products and solutions. In this capacity, Defendant No. 1 was granted continued access to the Plaintiff's Confidential Information (including its trade secrets and technical know-how) not only to ensure operational continuity but also to advance the collective business interests of the Zetwerk Group.

28. It is submitted that the Plaintiff reposed implicit faith in Defendant No. 1, relying on his long-standing association with the Zetwerk Group, his senior leadership role, and alignment with the Zetwerk Group's shared strategic interests (which include that of the Plaintiff). This trust is further evidenced by the Plaintiff/ Zetwerk Group's decision to transition Defendant No. 1 to a key leadership role at Defendant No. 2 and also, its decision to sponsor Defendant No. 1's green card – an unequivocal demonstration of the Plaintiff's commitment to his long-term association with the Zetwerk Group.

29. It is submitted that the Defendant No. 1 also remained bound by his contractual obligations, including those under his Appointment Letter. The Plaintiff submits that Defendant No. 1's duty to maintain his 'confidentiality' obligations did not lapse merely because he transitioned to a different role within the Zetwerk Group.



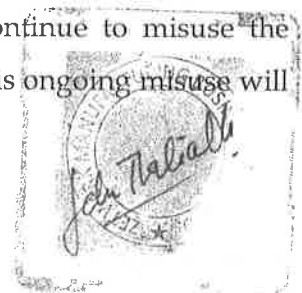
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30. It is submitted that as its Confidential Information remained its exclusive property, Defendant No. 1 had no right, entitlement, or authorization – express or implied – to store, retain, use, or disclose it following his departure for any purpose whatsoever, much less as a springboard for activities detrimental to the Plaintiff, and to personally profit from the same. At no point did the Plaintiff provide express or tacit consent for Defendant No. 1 to retain or exploit this information post-employment.
31. It is submitted Defendant No. 1 was duty-bound to act in the Plaintiff's best interests and an affirmative obligation to ensure that the Plaintiff's Confidential Information (including trade secrets and technical know-how) were neither misused nor misappropriated – whether by himself, employees, or third parties.
32. It is submitted that the Defendant No. 1 willfully misused and misappropriated the Plaintiff's Confidential Information and has leveraged the same – including strategic acquisition targets – for his own advantage and in a manner that benefitted third parties. His actions were not inadvertent but a calculated scheme to exploit the Plaintiff's proprietary assets, as evidenced by unauthorized misuse of Confidential Information, potential disclosures to third parties such as Ayr Energy, and unauthorised transfer of confidential files immediately prior to his departure.
33. It is submitted that the Defendant No. 1's *mala fide* actions constitute tortious misappropriation. Additionally, these acts amount to a breach of contractual obligations under the Appointment Letter as well as a violation of Defendant No. 1's fiduciary and legal duties owed to the Plaintiff.



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34. It is submitted that the Defendant No. 1's unlawful misuse and misappropriation of the Plaintiff's Confidential Information, including the Power Components Company's acquisition and (potentially) supplier pricing, and also, their subsequent unauthorized use of such proprietary information – to the Plaintiff's detriment – has wrongfully interfered with the Plaintiff's contractual and business relationships. The Plaintiff submits that by leveraging this Confidential Information, Defendant No. 1 has enabled third parties such as Ayr Energy (with whom it is associated) to gain an unfair competitive advantage over the Plaintiff's commercial dealings, causing tangible economic harm to the Plaintiff. These actions constitute deliberate and unlawful interference with the Plaintiff's business interests.
35. It is submitted that the collective breaches committed by Defendant No. 1 have caused significant and irreparable harm. These breaches continue to harm the Plaintiff. The Plaintiff has invested significant time and resources in cultivating its Confidential Information, supplier relationships, and business intelligence. By unlawfully misappropriating and exploiting the Plaintiff's Confidential Information – including trade secrets, technical know-how, supplier lists and (potentially) pricing, and strategic business data – Defendant No. 1 has gained an undue commercial advantage, directly prejudicing the Plaintiff's market position and business interests, and have compromised its competitive standing. This has also caused disruptions in the Plaintiff's supply chain and impacted the special pricing agreements it had negotiated with those suppliers.
36. It is submitted that if allowed to continue, the Plaintiff verily believes that Defendant No. 1 will continue to misuse the Plaintiff's Confidential Information. This ongoing misuse will



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not only prejudice the Plaintiff but will also cause further damage to its goodwill and reputation, while disrupting its longstanding business relationships and eroding its competitive edge. In light of the above, the Plaintiff submits that it has no alternative but to seek judicial intervention to prevent the continued misuse of its Confidential Information and to safeguard its market position, goodwill, and commercial interests.

37. Given the above, it is submitted that the disclosure of misuse of Confidential Information is essential for enabling a complete understanding of the extent to which Defendant No. 1 has (or, can) misused or disclosed its Confidential Information. This will assist the Plaintiff in assessing the full scope of the harm caused, ensuring that all relevant information is properly secured, and preventing further violations. Additionally, the disclosure will aid in determining any further steps necessary to preserve evidence, seek appropriate remedies, and protect the Plaintiff's commercial interests during the course of the legal proceedings, including seeking any further reliefs as may be warranted.

38. In light of the above, it is submitted that the *prima facie* case is in its favour. The balance of convenience lies solely in favour of the Plaintiff. Plaintiff submits that no harm, loss, or injury would be caused to the Defendant No. 1 in the case aforesaid reliefs are granted. On the contrary irreparable loss, harm, and injury will be caused to the Plaintiff in the case such reliefs are not granted.

39. The cause of action for the suit arose in February 2025, when one of its suppliers informed the Plaintiff that Defendant No. 1 - while still employed with Defendant No. 2 - had



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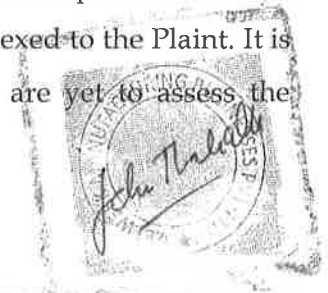
approached them on behalf of Ayr Energy seeking to procure services. It is further submitted that Defendant No. 1 did so by misusing the Plaintiff's Confidential Information. Given the above, the Plaintiff submits that the limitation period for initiating proceedings to restrain Defendant No. 1 from misusing its Confidential Information does not expire before January 2028 (in accordance with the three-year limitation period from the date of first knowledge). In view of the foregoing, the Plaintiff states that the present suit is filed within limitation.

40. It is submitted that as per the terms of the Appointment Letter, exclusive jurisdiction has been conferred upon the courts in Bangalore to adjudicate disputes between Plaintiff and Defendant No. 1. Additionally, the Plaintiff has its registered office in Bangalore, and its Confidential Information is stored on servers located in Bangalore, further establishing a territorial nexus. Given that the unauthorized access, misuse, and misappropriation of such Confidential Information directly prejudice the Plaintiff's rights, the cause of action, at least in part, arises within this jurisdiction. Accordingly, it is submitted that this Hon'ble Court has the jurisdiction to try, entertain, and decide the present suit.

41. There is no pendency of any legal proceedings, either past or present concerning the same subject matter within the knowledge of the Plaintiff Company.

42. It is submitted that the suit is filed in time and is thus not barred by limitation.

43. The suit is valued as per the Karnataka Court Fees and Suit Valuation Act, 1958 and accordingly, the requisite Court fee is paid. A separate valuation slip is annexed to the Plaint. It is submitted that the Plaintiff Company are yet to assess the



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damages suffered by it and hence undertakes to pay the requisite court fee as mandated at the time of suing the Defendant for relief of damages.

PRAYER

WHEREFORE, it is humbly prayed that this Hon'ble Court be pleased to pass a judgment and decree of:

A. Pass an order of permanent injunction restraining Defendant No. 1 or any other person(s) acting on his behalf or on his instructions from (mis)using, disclosing, disseminating, dealing with or otherwise misappropriating the Plaintiff's Confidential Information in any manner whatsoever;

B. Pass an order for appointment of court receiver to forthwith seize, secure, and/or destroy any and all Confidential Information belonging to the Plaintiff that is in Defendant No. 1's possession, custody, or control, or any other person(s) acting on his behalf or on his instructions;

C. Pass an order directing the Defendant No. 1 to compensate the Plaintiff for losses including loss of profits resulting from the unauthorized use of its Confidential Information;

D. Grant such other and further reliefs as the Hon'ble Court deems fit in the interest of justice and equity.

PLACE: BENGALURU

DATE: 23/4/25

**ADVOCATE FOR
PLAINTIFF**

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IN THE COURT OF THE ADDL. CITY CIVIL AND SESSIONS
JUDGE,
AT BENGALURU
IN
OS No. _____/2025

Between:

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

And:

Anirudh Reddy Edla and Anr

Defendants

VERIFYING AFFIDAVIT

I, John Tharian Thaliath S/o Hormise Tharian Thaliath, Authorized representative of Zetwerk Manufacturing Businesses Private Limited, having office at No. 461, 1st Floor, Oriental Towers, 4th Sector, 17th Cross, HSR Layout, Bengaluru, India - 560102, do hereby solemnly state on oath as follows:

1. I state that I am the authorized signatory of the Plaintiff company in the instant matter and I am well aware of the facts and circumstances of the case to the swear to the instant Affidavit.
2. I state that the averments made in the paragraph No. 1 to ____ of the accompanying plaint are true and correct to the best of my knowledge, information and belief.
3. I state that Document No.1 to _____ are true copies of the Originals.

Identified by me,

Advocate

Place: Bengaluru

Date: 23/4/25



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BEFORE THE HON'BLE COURT OF THE ADDITIONAL CITY CIVIL AND
SESSIONS JUDGE AT BENGALURU

O.S No. ____/2025

BETWEEN

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

AND

Anirudh Reddy Edla and Anr

Defendants

VALUATION SLIP

Serial No. of the Property in Plaintiff Schedule	The clause of Sec. 7 (2) of the Karnataka Court Fees and Suits Valuation Act, 1958 under which the property comes	The amount of Revenue or other basis for Valuation	Method adopted to arrive at the valuation	Valuation arrived at
1	2	3	4	5
Nil	Does not fall under Section 7(2)	a. Pass an order of permanent injunction, restraining Defendant No. 1, or any other person(s) acting on his behalf or on his instructions, from (mis)using, disclosing, disseminating, or otherwise misappropriating the Plaintiff's Confidential Information in any manner whatsoever; b. Pass an order for appointment of court receiver to forthwith seize, secure, and/or destroy any and all Confidential Information belonging to the Plaintiff that is in	Prayers (a),(b) and (c) are valued under Section 26 read with Schedule I, Article 1(i) of the Karnataka Court Fees and Suits Valuation Act, 1958	Rs.75/-

		Defendant No. 1's possession, custody, or control, or any other person(s) acting on his behalf or on his instructions; c. Pass an order, directing the Defendant No. 1 to compensate the Plaintiff for losses, including loss of profits resulting from the unauthorized use of its Confidential Information		
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Place: Bangalore

Date: 23/4/25

Advocate for Plaintiff

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IN THE COURT OF THE ADDL. CITY CIVIL AND SESSIONS
JUDGE,
AT BENGALURU
IN

O.S. NO. ____/2025

BETWEEN:

Zetwerk Manufacturing Businesses Private Limited,
A company incorporated under the
Companies Act, 2013,
Having its office at:
No. 461, 1st Floor, Oriental Towers,
4th Sector, 17th Cross, HSR Layout,
Bengaluru, India - 560102
Represented by its
Authorised representative
John Tharian Thaliath

Plaintiff

AND:

1. Anirudh Reddy Edla
Aged about major
Having his residence at #16-2-741/A/1/A,
Asmanghad, Hyderabad - 500 036,
Telangana
2. Zetwerk Manufacturing USA Inc.
A corporation formed under the laws of Delaware
and having its principal place of business at
548 Market St #70774, San Francisco,
California - 94104

Defendants

**STATEMENT UNDER ORDER VI RULE 14(A) OF THE CODE OF
CIVIL PROCEDURE, 1908**

The above-named Plaintiff submits that the above said address of the parties mentioned in the plaint is registered and correct. Further, at the present the Defendants have their office and residence at address furnished in the cause title. Hence, the Plaintiff has furnished the addresses as above. Summons may be issued to the Defendants at the above addresses.

Place: Bangalore

Date: 23/4/25

John Tharian Thaliath
Plaintiff

Advocate for Plaintiff

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BEFORE THE HON'BLE COURT OF THE ADDITIONAL CITY
CIVIL AND SESSIONS JUDGE AT BENGALURU

IN

O.S No. /2025

BETWEEN

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

AND

Anirudh Reddy Edla and Anr

Defendants

LIST OF DOCUMENTS

<u>Sl. No.</u>	<u>Description</u>	<u>Page No.</u>
1.	Document No.1: Copy of Board Resolution dated July 01, 2022 passed by the Board of Directors of the Plaintiff Company.	24 -
2.	Document No.2: Copy of Appointment letter dated 01.03.2019.	25-31
3.	Document No.3: Copy of Offer of the Employment dated 26.12.2022	32-34
4.	Document No.4: Copy of the Email Communication dated 10.03.2025.	35-36

PLACE: BENGALURU

DATE: 23/4/25

ADVOCATE FOR PLAINTIFF

CERTIFIED TRUE COPY OF THE BOARD RESOLUTION PASSED IN THE 4TH MEETING OF THE FINANCIAL YEAR (FY) 2022-23 OF THE BOARD OF DIRECTORS OF THE COMPANY I.E. ZETWERK MANUFACTURING BUSINESSES PRIVATE LIMITED HELD AT SHORTER NOTICE ON FRIDAY, 1ST DAY OF JULY 2022 AT THE REGISTERED OFFICE AT NO. 461 ORIENTAL TOWERS, 17TH CROSS, 4TH SECTOR, 1ST FLOOR, HSR LAYOUT, BANGALORE 560102 KARNATAKA AT 10:00 A.M.

"RESOLVED THAT consent be and is granted in favour of Mr. John Tharian Thaliath, Vice President Legal of the Company to initiate and/or defend all legal proceedings on behalf of the Company, as may be arising in the course of the business of the Company.

RESOLVED FURTHER THAT Mr. John Tharian Thaliath, Vice President Legal of the Company, be and is hereby authorized on the behalf of the Company to sign, execute and file all applications, affidavits, plaint, petition, suits, appeals, written statements rejoinder, seek information etc in the matter of suit/ complaint/ plaint/ petition/ application/ pleadings as filed / to be filed by or against the company before any Court of Law or Authority, Forum or Quasi-Judicial Authority, Boards, Commissions or otherwise on behalf of the Company and for that purpose he is authorized to engage, appoint or remove any Pleader/s or Advocate/s and sign Vakalatnama/ Power of Attorney for such engagement or appointment and to file and defend the interest of the Company by all means and do everything necessary for the said purposes.

RESOLVED FURTHER THAT Mr. John Tharian Thaliath, Vice President Legal of the Company, be and is hereby authorized on the behalf of the Company to enter into any Arbitration or Mediation proceedings in the course of any legal proceedings.

RESOLVED FURTHER THAT Mr. John Tharian Thaliath, Vice President Legal of the Company, be and is hereby authorized on the behalf of the Company to do all such acts, deeds and/or things as may be necessary, incidental and/or consequential in the course of any of the legal proceedings either by or against the Company and all such actions done or taken shall be binding on the Company."

Specimen signature of Mr. John Tharian Thaliath is appended below:

Mr. John Tharian Thaliath
S/o Mr. Hormise Tharian Thaliath
R/o Thaliath House, Florican Road, Malaparamba Post,
Malaparamba, Kozhikode, Malaparamba,
Kerala 673009



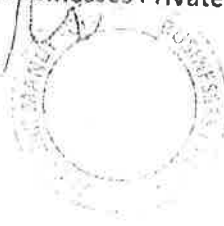
Certified to be true

For Zetwerk Manufacturing Businesses Private Limited

Srinath Ramakrishnan

Director

DIN: 07596310



Date: 01-Mar-2019

To: Anirudh Reddy
#16-2-741/A/18/1/A, Asmanghad,
Hyderabad- 500036

Appointment Letter

Dear Anirudh,

We are pleased to extend this appointment letter to you as Director – Strategic Initiatives with effect from 01-Mar-2019.

Your employment in our organization shall be governed by the following terms and conditions, which may be amended from time to time at the discretion of the Management. For the purposes of this document, please refer to Zetwerk Manufacturing Businesses Private Limited as the "Company" and yourself as the "Employee".

1. Commencement of Employment:

You will be joining us as Director – Strategic Initiatives with the company with effect from 01-Mar-2019. In the course of your employment, you will be required to undertake and perform all the acts, functions, and duties as may be assigned to you by the company based on your knowledge, qualification and experience.

2. Place of Work:

Place of work is Bangalore, however, should a need arises the employee may be transferred or expected to travel to any of our offices / customer site(s) globally from time to time or for short and long duration as may be necessary in the interest of the company's business.

3. Hours of Work:

On normal work days Monday to Saturday the working hours are 9.00 AM to 6.00 PM with 60 minutes of lunch break. You need to complete 48 working hours in a standard week. You may be required to work such additional hours as may be necessary for you to perform your duties effectively and you will not be entitled to receive any additional remuneration for work done outside your normal hours of work.

4. Probation:

You will be in the probation period of 3 months from your joining date. Post completion of 90 days from your Date of Joining, your employment stands confirmed in the official records. Considering your performance review, there shall be possible changes in the defined probation period.

5. Compensations :

Your annual Salary and other monetary compensations will be paid as per the standard guidelines of the Company. All the salary components are strictly mapped to the labour laws; hence no changes in CTC will be entertained.

5.1. Salary

Your salary will be paid to you on or before last working day on the month. Your salary payment is subject to the standard statutory deductions as per the government and labor laws.

You payable salary will as mentioned in the salary annexure in this letter.

5.2. Variable Pay

Variable pay will be purely based on your annual performance. Defined Variable pay shall be paid to you by end of financial year. Variable pay amount shall be decided on your direct contribution to the Company's growth.

5.3. Early Joining Bonus

Early Joining Bonus if any shall be paid along with your first salary. In case of resignation prior to completion of one year you are required to pay back the entire joining bonus amount to the company before your last working day. This recovery shall be considered for your final relieving from the Company.



6. Benefits :

6.1. Health And Security

You will be provided Comprehensive healthcare insurance policy for yourself and your family

- Group Medical Care Insurance Cover for the employee and dependents. Employee can cover up to 5 dependents (Self +Spouse +2 children + 2 Parents / Parents In Law). Policy covers the hospitalization benefit for Employee and family for the hospitalization expenses up to 500000 per year.
- Group Personal Accident Insurance Cover for the employee. This policy ensures the financial support to employee/ family up to INR 500000, in case of accidental death or accident leading to any kind of temporary or permanent disabilities.
- An exclusive OPD benefit up to 7500 per year per family which shall be utilized for consultation and diagnostic prescription.
- Periodic Wellness Programs such as Health check-ups, Yoga sessions, and Fitness workshops in office premises.

6.2. Leave Benefits

Every permanent employee of Zetwerk will be benefitted with the standard leave policy of the Company.

- Privileged leave of 18 days per year (Not exceeding the limit of 1.5 day per working month). Unused leaves from this category can be carried forward to next year and can be en-cashed during the exit of employee.
- Sick Leave/ casual leave of 12 days (Not exceeding the limit of 1 day per working month). Unused leaves from this category cannot be carried forward to next year or en-cashed

6.3. Learning and Development

Company believes in the continuous growth of its employees, and will strive to provide the best platform for learning and development with periodical trainings conducted.

6.4. Tax Benefits

- Your salary structure is designed to avail maximum possible tax benefits on your salary income
- We have introduced Sodexo meal cards, Employee reward gift vouchers as additional tax saver options.

6.5. Gratuity Benefits

Employee is eligible for the gratuity benefit as per the Gratuity act of Indian Government. Gratuity is the additional benefit to the employee, from his actual salary and other benefits. It can be availed on completion of 5 years of service in the Company. Gratuity can be paid to the employee only along with his/her final settlement.

7. Resignation / Termination:

Any employee needs to serve notice of 30 days on resignation. Failing to serve the required notice period shall result in recovering notice period in lieu from you. You shall not avail any leaves during the notice period. Any emergency leave taken during notice period shall extend the last working day in the organization.

Company can terminate an Employee without Notice in case of Integrity Issue, Sexual Harassment, Loss /damage to company property

The employee who resigns or is terminated needs to fill the F&F form on the last working day. The Employee gets F&F Settlement within 45 Days

8. General Guidelines :

1. You shall take excellent care of and be responsible for the work equipment, official documents, tool, and other items/materials entrusted to you.
2. This letter shall be governed by and construed in accordance with the laws of India. The courts at Bangalore shall have exclusive jurisdiction to decide any dispute arising out of this letter.

SALARY ANNEXURE

Employee Code : Z0048		
Name : Anirudh Reddy		
Designation : Director - Strategic Initiatives		
Date of joining : 01-Mar-2019		
CTC of INR 3000000 per Annum		
Particulars	Per Month	Per Annum
Basic and DA	1,00,000	12,00,000
HRA	50,000	6,00,000
Special Allowance	96,000	11,52,000
Meals allowance- Paid to Sodexo	2,200	26,400
GROSS IN PAY SLIP	2,48,200	29,78,400
PF Employer	1,800	21,600
Total CTC	2,50,000	30,00,000
PF Contribution (@ 12% of Basic)- Employees	1,800	21,600
ESI		
PT (>Rs.15,000, Rs 200)	200	2,400
Total deduction	2,000	24,000
NET TAKE HOME SALARY	2,46,200	29,54,400

*Note: - Deductions are subject to the statutory guidelines

Best Regards



Amrit Pratik Acharya

CEO / MD

Zetwerk Manufacturing Businesses Private Limited

I hereby accept the terms and conditions of the employment mentioned in this letter.

Signature :


ANIRUDH REDDY

Employee Name:

Employee ID :

Z0048

Date :

26/3/2019

Location

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Employee Code of Conduct

Company employees are bound by their contract to follow our Employee Code of Conduct while performing their duties. We outline the components of our Code of Conduct below:

Compliance with law:

All employees must protect our company's legality. They should comply with all environmental, safety and fair dealing laws. We expect employees to be ethical and responsible when dealing with our company's finances, products, partnerships and public image.

Respect in the workplace

All employees should respect their colleagues. We won't allow any kind of discriminatory behavior, harassment or victimization. Employees should conform with our equal opportunity policy in all aspects of their work, from recruitment and performance evaluation to interpersonal relations.

Protection of Company Property

All employees should treat our company's property, whether material or intangible, with respect and care. Employees should protect company facilities and other material property (e.g. Laptops, any other equipment) from damage and vandalism, whenever possible.

Professionalism

All employees must show integrity and professionalism in the workplace:

1. Personal appearance

All employees must follow the standard dress code and personal appearance guidelines.

2. Corruption

We discourage employees from accepting gifts or favors from clients or partners. We prohibit bribes for the benefit of any external or internal party.

3. Job duties and authority

All employees should fulfill their job duties with integrity and respect toward customers, stakeholders and the community. We expect them to delegate duties to their team members taking into account their competences and workload. Likewise, we expect team members to follow team leaders' instructions and complete their duties with skill and in a timely manner.

4. Absenteeism and tardiness

Employees should follow their schedules. We can make exceptions for occasions that prevent employees from following standard working hours or days. But, generally, we expect employees to be punctual when coming to and leaving from work.

5. Collaboration

Employees should be friendly and collaborative. They should try not to disrupt the workplace or present obstacles to their colleagues' work.

6. Communication

All employees must be open for communication with their colleagues, supervisors or team members.

7. Policies

All employees should read and follow our company policies. Every employee covers under obligation of company anti bribery and anti corruption policy, POSH policy and other policies strictly.

8. Non Disclosure clause

All employees should maintain the confidentiality of the organization. Employee must not read and follow our company policies. If they have any questions, they should ask their managers or Human Resources (HR) department

9. Disciplinary actions

Our company may have to take disciplinary action against employees who repeatedly or intentionally fail to follow our code of conduct. Disciplinary actions will vary depending on the violation.

Possible consequences include:

- Demotion.
- Suspension or termination from employment for more serious offenses.

We may take legal action in cases of corruption, theft, embezzlement or other unlawful behavior.

I hereby understand and accept the terms and conditions of the employee Code of Conduct.



ADDENDUM TO THE APPOINTMENT LETTER

Dear Anirudh Reddy,

Your employment in our organization is governed by the terms and conditions stipulated in the appointment letter dated 01-Mar-2019 ("Appointment Letter"). In addition to the terms stated in the Appointment Letter, your employment shall also be governed by the terms and conditions stipulated in this addendum to the Appointment Letter ("Addendum").

1. DEFINITIONS AND INTERPRETATION

- 1.1. Unless otherwise expressly defined in this Addendum, all capitalized terms as used in this Addendum shall have the same meaning assigned to such term in the Appointment Letter to the extent not amended or substituted pursuant to this Addendum.
- 1.2. The Addendum shall form a part of the Appointment Letter, and the rights and obligations of the Employee under the Appointment Letter will be construed in conjunction with the provisions of this Addendum. Except as provided herein, all other terms and conditions of the Appointment Letter shall remain unchanged and will continue in full force and effect.

2. INSERTION OF NEW TERMS TO THE APPOINTMENT LETTER

2.1. Insertion of new Clause 5A (Performance Review) in the Appointment Letter

After Clause 5 (Compensations), the following provision shall stand inserted in Clause 5A of the Appointment Letter:

"You will be eligible to participate in a performance review and subsequent salary revision if you have had a minimum of 90 days of employment in the Company within that performance period."

2.2. Insertion of new Clause 9 (Intellectual Property) in the Appointment Letter

After Clause 8 (General Guidelines), the following provision shall stand inserted in Clause 9 of the Appointment Letter:

"For the purpose of this appointment letter, "Intellectual Property" shall mean any work product (whether tangible or intangible) including materials, writings, trademarks, trade names, computer programs, data, database, technology, concepts, trade secrets, designs (whether registered or unregistered), innovations, discoveries, inventions, improvements, (whether or not patentable and whether or not copyrightable), that is conceived, created, designed, invented, discovered, written, prepared or developed by the Employee, solely or jointly with others, relating in any manner to any present or prospective business or other activities of the Company and/or its affiliates and/or resulting from the use of the Company's time and/or materials and/or information and/or facilities, or from the services

Zetwerk Manufacturing Businesses Private Limited

CIN: U74999TN2017PTC119848 | Mail: info@zetwerk.com | Web: www.zetwerk.com

Corporate Office: No 401, Oriental Towers, 1st Floor, 17th Cross, Sector 4, HSR Layout, Bangalore - 560102

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the Employee performs for the Company (whether during normal business hours or otherwise), during the Employee's engagement with the Company, and includes work product that is known to the Employee by virtue of his/her employment with the Company. All rights, title and interest in any Intellectual Property arising out of or in connection with your employment shall be the sole and exclusive property of the Company.

You hereby irrevocably grant, convey, transfer, assign and deliver to the Company:

- (a) the entire right, title, claim, interest and benefit along with the goodwill, in and to the Intellectual Property and all such rights which the Employee may develop during the course of his employment with the Company, the same to be held by the Company, absolutely and uninterruptedly; and*
- (b) all rights to sue for past, present and future infringements or misappropriation of the Intellectual Property, if any.*

The Company and the Employee hereby expressly agree to exclude sub-section 4 of section 19 of the Copyright Act, 1957."

2.3. Insertion of new Clause 10 (Confidentiality) in the Appointment Letter

The following provision shall stand inserted in Clause 10 of the Appointment Letter:

"You must always maintain the highest degree of confidentiality and keep as confidential the records, documents and other confidential information relating to the business of the Company, which includes, without limitation any procurement requirements, purchasing, manufacturing, customer lists, financial and technical data, vendors, vendor lists, business forecasts and opportunities, sales and merchandising, marketing plans and information regarding the business or operations of the Company or its clients, which may be known to you or confided in you by any means and you will use such information only in a duly authorized manner in the interest of the Company. You shall comply with all of the Company's instructions for preserving its confidentiality and use confidential information only in furtherance of the Company's business. You further declare that you shall not use the confidential information for your own use and personal gain or disclose the same to any third party."

Zetwerk Manufacturing Businesses Private Limited

CIN: U74999TN2017PTC119848 | **Mail:** info@zetwerk.com | **Web:** www.zetwerk.com

Corporate Office: No 461, Oriental Towers, 1st Floor, 17th Cross, Sector 4, HSR Layout, Bangalore - 560102

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3. GENERAL

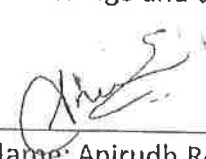
- 3.1. Effective Date: This Addendum shall be effective from the date on which Appointment Letter was made effective i.e. 01-Mar-2019.
- 3.2. Save as added by this Addendum, the Appointment Letter shall continue in force and effect.
- 3.3. Save as expressly provided in this Addendum, nothing in this Addendum shall be construed as a waiver of your rights, claims or obligations under the Appointment Letter.
- 3.4. In the event of any conflict between this Addendum and the Appointment Letter, the provisions of this Addendum shall prevail to the extent of such conflict.

Best Regards

A handwritten signature in dark ink, appearing to be 'Amrit', written over a horizontal line.

Amrit Pratik Acharya
CEO / MD
Zetwerk Manufacturing Businesses Private Limited

I hereby acknowledge and agree this Addendum amends the terms of the Appointment Letter.

Signature: 
Employee Name: Anirudh Reddy
Employee ID: Z0048
Date: 24-Jan-2020
Location: Bangalore



December 26, 2022

Anirudh Reddy Edla

Re: Offer of Employment

Dear Anirudh Reddy:

On behalf of Zetwerk Manufacturing USA Inc (the "Company"), I am pleased to offer you the position of Business Head located in Remote. This letter sets forth the terms and conditions of your employment with the Company. It is important that you understand clearly both what your benefits are and what the Company expects of you. By signing this letter, you will be accepting employment on the following terms.

1. Effective Date. Your employment will commence on January 10, 2023 (the "Effective Date").
2. Duties. Your job title will be Business Head, reporting to Srinath Ramakkrushnan, Co-founder. Your duties generally will be in the areas of

Promoting and developing the company's brand.

Finding new business opportunities.

Building a good relationship with clients, suppliers, and stakeholders.

Creating business plans and strategies to improve the overall business sales.

Analyzing and gathering data and information about the market.

Developing new business partners.

, but you may be assigned other duties as needed. This is a full-time position.

3. Compensation. This is an exempt position and you will be paid \$200,000 per year in accordance with the Company's normal payroll procedures. Subject to the Company's current annual performance review process, you may be eligible for an increase of your base compensation.
4. Incentive Compensation. You will be eligible to participate in annual performance bonus plans established by the Company from time to time for similarly situated employees, subject to the terms and conditions established by the Company for such bonus plans.

Performance linked bonus - \$20313

- Note: FY23 is the Indian Financial Year 2023 – the period from Apr'22 to Mar'23.

5. Reimbursement of Expenses: All reasonable business expenses that are documented by you and incurred in the ordinary course of business will be reimbursed in accordance with the Company's standard policies and procedures.

Any such bonuses will be based on the achievement of goals and milestones established by the Company in its sole discretion, and the Company in its sole discretion may amend or terminate any such bonus plans at any time.

6. Employee Benefits - You will be eligible to participate in Company-sponsored benefits including holidays. Your

eligibility to receive such benefits will be subject in each case to the generally applicable terms and conditions for the benefits in question and to the determinations of any person or committee administering such benefits. The Company may from time to time, in its sole discretion, amend or terminate the benefits available to you and the Company's other employees. You will be covered by worker's compensation insurance, state disability insurance and other governmental benefit programs as required by state law.

7. At-Will Employment. Your employment with the Company is "at-will." In other words, either you or the Company can terminate your employment at any time for any reason, with or without cause and with or without notice, without liability except as expressly set forth in this letter. No representative of the Company has authority to enter into any agreement contrary to the foregoing "employment at will" relationship.
8. Separation notice. Employee is requested to provide 30 days' notice
9. Adjustments and Changes in Employment Status. The Company reserves the right to make personnel decisions regarding your employment, including but not limited to decisions regarding any transfers or other changes in duties or assignments, changes in your salary and other compensation, changes in benefits and changes in Company policies or procedures.
10. Proprietary Information Agreement. You will be required to sign and abide by the terms of the enclosed Proprietary Information and Inventions Agreement prior to beginning employment, indicating your full agreement to, and ongoing compliance with, the terms of that agreement, which include, among other provisions, the assignment of patent rights to any invention made during your employment at the Company, and non-disclosure of the Company's proprietary information.
11. References and Immigration Documents. This offer is contingent upon satisfactory completion of all of our reference and background checks, and on your ability to prove your identity and authorization to work in the U.S. for the Company. You must comply with the United States Citizenship and Immigration Services employment verification requirements.
12. No Conflicting Obligations. By execution of this letter, you represent and warrant that your performance of this letter does not and will not breach any agreement you have entered into, or will enter into, with any other party. You must disclose to the Company any and all agreements relating to your prior employment that may affect your eligibility to be employed by the Company or limit the manner in which you may be employed. It is the Company's understanding that any such agreements will not prevent you from performing the duties of your position and you represent that such is the case. Moreover, you agree that, during the term of your employment with the Company, you will not engage in any other employment, occupation, consulting, or other business activity directly related to the business in which the Company is now involved or becomes involved during the term of your employment, nor will you engage in any other activities that conflict with your obligations to the Company. Similarly, you agree not to bring any third-party confidential information to the Company, including that of any former employer, and that you will not in any way utilize any such information in performing your duties for the Company. By signing and accepting this offer, you represent and warrant that: (i) you are not subject to any pre-existing contractual or other legal obligation with any person, company or business enterprise which may be an impediment to, or a conflict of interest with, your employment with the Company, or your providing services to the Company as its employee; (ii) you do not have and shall not bring onto the Company's premises, or use in the course of your employment with the Company, any confidential or proprietary information of another person, company or business enterprise to whom you previously provided services; and (iii) you will not, at any time during your employment with the Company, breach any obligation or agreement that you have entered into with any third party, including your former employers. You agree not to enter into any written or oral agreement that conflicts with this letter.
13. Integrated Agreement. This letter supersedes any prior agreements, representations or promises of any kind, whether written, oral, express or implied between the parties hereto with respect to its subject matter. Likewise, this letter will constitute the full, complete and exclusive agreement between you and the Company with respect to its subject matter. This Agreement may only be changed by a writing, signed by you and an authorized representative of the Company.
14. Severability. If any term of this letter is held to be invalid, void or unenforceable, the remainder of the terms herein will remain in full force and effect and will in no way be affected, and the parties will use their best efforts to find an alternative way to achieve the same result.

15. Governing Law. The terms of this letter and the resolution of any dispute as to the meaning, effect, performance or validity of this letter or arising out of, related to, or in any way connected with, this letter, your employment with the Company or any other relationship between you and the Company (a "Dispute") will be governed by the laws of the State of Delaware, without giving effect to the principles of conflict of laws. You and the Company consent to the exclusive jurisdiction of, and venue in, the state or federal courts in Delaware.

This offer letter expires on January 9, 2023.

Sincerely,

Zetwerk Manufacturing USA Inc



Srinath Ramakkrushnan

Acknowledgment and Acceptance of Employment Offer

I accept employment with Zetwerk Manufacturing USA Inc and acknowledge and fully agree to the terms and conditions set forth in this offer letter:



Anirudh Reddy Edla

Disclaimer: This is an external email. Please exercise caution when clicking links or opening/downloading any attachments.

Prashant and Karishma,

Aniruddh's email to Srinath and the response I recommended below.

Regards,

John

Sent from my iPhone

Begin forwarded message:

From: Srinath Ramakkrushnan <rsrinath@zetwerk.com>

Date: 31 March 2025 at 8:53:59 PM IST

To: Anirudh Reddy <anirudh@ayr.energy>

Cc: John Thaliath <john.thaliath@zetwerk.com>, Amrit Acharya <amrit@zetwerk.in>

Subject: Re: Accel / Ayr Energy / Zetwerk

Moving Accel folks to bcc.

Anirudh,

Over the last 7 years, we have built this company with hard work, but above all, it is built on values and trust. Your conduct in this instance (as we are still discovering) has breached that trust we placed in you. The basic premise for any commercial deal too has to be based on trust. While we are grateful as a manufacturer for the trust you bestow in us and our products, the circumstances and conduct of your departure has cast a shadow that compels us to decline this proposal.

As a company, we cannot be transactional in our approach in these circumstances. ZETWERK reserves its right to all legal recourses. Our counsel also instructs us to not engage in further conversation in this regard as we would be in adversarial positions in this regard soon. We also urge you and your colleagues to refrain from any conduct which would be based on data and information which are proprietary to ZETWERK.

Thanks & Regards,

Srinath Ramakkrushnan

On Mon, Mar 17, 2025 at 12:08 PM Anirudh Reddy <anirudh@ayr.energy> wrote:

Srinath - As discussed, bumping this up for you.

On Mon, Mar 10, 2025 at 8:21 AM Anirudh Reddy <anirudh@ayr.energy> wrote:

Srinath,

I thought about our conversation last weekend and feel there are better ways to address your concerns.

We are open to exploring a strategic purchase agreement with Kryfs, the company Zetwerk is acquiring, for transformer raw material (CRGO laminations and tanks). We are also open to exploring the possibility of Zetwerk participating in the round. The market is incredibly large and both of us are just getting started in this sector, so we do not need a non-compete from Zetwerk in return.

I believe this is a far more constructive approach for all parties involved. Let me know what you think or if you have alternate solutions.

Regards,
Anirudh

SRINATH RAMAKKRUSHNAN

Co-founder

The Oriental Towers, No. 461, 1st Floor, 17th Cross Road, 4th Sector,

Sector 4, HSR Layout, Bengaluru, Karnataka 560102.

M +91 8008 940 666 E rsrinath@zetwerk.com W zetwerk.com



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IN THE COURT OF THE ADDL. CITY CIVIL AND SESSIONS JUDGE,
AT BENGALURU

O.S. No. _____/2025

Appellant/s, Petitioner/s
Plaintiff/s, Complainant/s
Decree-Holder/s/Caveator/s

v.

Defendant/s Respondent/s
Accused/Judgement-Debtor/s,
OpponentsZetwerk India Manufacturing
Businesses Private Limited

Anirudh Reddy Edla and Anr

I, John Thomas Thabath the authorised signatory of the Plaintiff Company herein, hereby appoint and retain M/s. JSM Law Partners, Joseph Anthony, Shirish Krishna and Monica Patil - Advocates, to appear, act and plead for us in the above matter and to conduct/prosecute and defend the same in all interlocutory or miscellaneous proceedings connected with the same or with any decree or orders passed therein appeals and or other proceedings arising there from and also in proceedings for review of judgment and for leave to appeal to Supreme Court and to obtain return of any documents filed therein or receive any money which may be payable to me.

I hereby authorize them to enter into a compromise in the above matter, to execute any decree/order therein to appeal from any decree/order/therein and to appeal to act to plead in such appeal in any preferred by any other party from any decree/other therein.

I further agree that if I fail to pay the fees agreed upon or to give due instructions at all stages they are at liberty to retire from the case and recover all amounts due to him/them and retain all my our monies till such dues are paid.

Executed by me/us this 21st day of April, 2025 at Bangalore.

Signature(s)

Executants/are personally known to me and he/has/they have signed before us

Satisfied as to the identity of executant Signature
(Where the executant/s are illiterate, blind or unacquainted with the language of vakalath)

Certified, that the contents were explained to the executant/s in my presence in English Language known to him/them who appear/s perfectly to understand the same and has/have signed in the presence.

Joseph Anthony Roll No. 2510/10	Shirish Krishna Roll No. 2387/10	JSM Law Partners Advocates Miller's Boulevard - Level 3 (HDFC Bank Building) No. 70/2, Miller's Road Bengaluru - 560 052 monica@jsmlaw.in
Monica Patil Roll No. 1553/13		

Advocates for Plaintiff
Bangalore

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BEFORE THE HON'BLE COURT OF THE ADDITIONAL CITY
CIVIL AND SESSIONS JUDGE AT BENGALURU

O.S No. /2025

BETWEEN

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

AND

Anirudh Reddy Edla and Anr

Defendants

CERTIFICATE FILED UNDER SECTION 63 OF THE BHARTIYA SAKSHYA

ADHIYAYAM, 2023

I, John Tharian Thaliath S/o Hormise Tharian Thaliath, Authorized representative of Zetwerk Manufacturing Businesses Private Limited, having office at No. 461, 1st Floor, Oriental Towers, 4th Sector, 17th Cross, HSR Layout, Bengaluru, India - 560102, do hereby solemnly state on oath as follows:

1. I have produced electronic record of the digital record taken from the following device:

Computer / Storage Media ☒ Mobile ☐ Flash Drive ☐

CD/DVD ☐ Cloud ☐ Server ☐ Other ☐

Make & Model: **MI Notebook Horizon Edition 14**

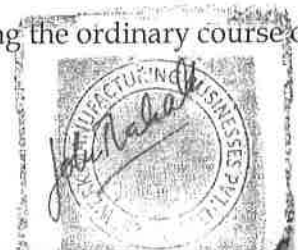
Device ID: **5FC50071-9B34-4C38-99D1-257CF99F4F36**

Product ID: **00327-35919-04500-AAOEM**

2. I state that I have printed the following documents from a printer of make HP Laser Jet Pro M202dw from the laptop computer of make MI Notebook Horizon Edition 14.

- a. Copy of the email communication dated March 10, 2025

The digital device source was under the lawful control for regularly creating, storing or processing information for the purposes of carrying out regular activities and during this period, the computer was working properly and the relevant information was regularly fed into the computer during the ordinary course of



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business. If the computer at any point of time was not working properly or out of operation, then it has not affected the electronic/digital record or its accuracy.

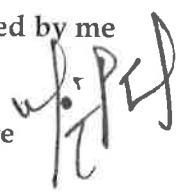
3. The digital device is owned and I state that the HASH value of the electronic record is 29fed93f97f83cf9f804a68c825ed09d obtained through the MD5 algorithm.

Place: Bangalore

Date: 28/4/25

Identified by me

Advocate



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IN THE COURT OF THE ADDL. CITY CIVIL AND SESSIONS
JUDGE,

AT BENGALURU

IN

O.S. NO. ____/2025

BETWEEN:

Zetwerk Manufacturing Businesses Private Limited,
A company incorporated under the
Companies Act, 2013,
Having its office at:
No. 461, 1st Floor, Oriental Towers,
4th Sector, 17th Cross, HSR Layout,
Bengaluru, India - 560102
Represented by its
Authorised representative
John Tharian Thaliath
Plaintiff

AND:

1. Anirudh Reddy Edla
Aged about major
Having his residence at #16-2-741/A/1/A,
Asmanghad, Hyderabad - 500 036,
Telangana
2. Zetwerk Manufacturing USA Inc.
A corporation formed under the laws of Delaware
and having its principal place of business at
548 Market St #70774, San Francisco,
California - 94104

Defendants

**INTERLOCUTORY APPLICATION FILED UNDER ORDER XXXIX
RULE 1 AND 2 OF THE CODE OF CIVIL PROCEDURE, 1908**

For the reasons stated in the accompanying affidavit, the Plaintiff most respectfully prays that this Hon'ble Court may be pleased to, pass an order of interim injunction against the Defendant No. 1, restraining him from (mis)using, disclosing, disseminating, dealing with or otherwise

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misappropriating the Plaintiff's Confidential Information in any manner whatsoever – including approaching the Plaintiff's suppliers and vendors, in the interest of justice and equity, till the disposal of the above case.

Place: Bengaluru

Date: 23/4/28

Advocate for Plaintiff

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BEFORE THE HON'BLE COURT OF THE ADDITIONAL CITY
CIVIL AND SESSIONS JUDGE AT BENGALURU

O.S No. /2025

BETWEEN

Zetwerk Manufacturing Businesses Private Limited

Plaintiff

AND

Anirudh Reddy Edla and Anr.

Defendants

AFFIDAVIT

I, John Tharian Thaliath S/o Hormise Tharian Thaliath, authorised representative, Zetwerk Manufacturing Businesses Private Limited, having office at No. 461, 1st Floor, Oriental Towers, 4th Sector, 17th Cross, HSR Layout, Bengaluru, India - 560102, do hereby solemnly state on oath as follows:

1. I state that, I am the authorized representative of the Plaintiff Company. I am swearing to this Affidavit on behalf of the Plaintiff Company. I am well conversant with the facts and circumstances of the above case. Hence, I am swearing to this Affidavit.
2. I state that the Plaintiff is a company incorporated under the provisions of the Companies Act, 2013, having its registered office at No. 461, 1st Floor, Oriental Towers, 4th Sector, 17th Cross, HSR Layout, Bengaluru, India - 560102. The Plaintiff Company is engaged in strengthening the manufacturing eco - system in India and overseas, and are *inter-alia* involved in manufacturing, sourcing and trading of various goods and products. The Plaintiff is a pioneer in the manufacturing industry with an unbreakable supply chain and unlimited manufacturing capacity regardless of the nature of the product. The Plaintiff has garnered immense reputation in a short span of time for offering high quality production, globally competitive



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costs and unparalleled lead times in the manufacturing of capital goods, consumer goods and precision parts.

3. I state that since its incorporation in 2018, the Plaintiff has significantly expanded its operations across multiple industries, including energy, infrastructure, aerospace, and heavy engineering, and has established itself as a key player in global industrial manufacturing sector through its continued focus on innovation and quality and cost-effective solutions. This growth has been further driven by, *amongst other things*:
- i. Fostering strategic partnerships with suppliers in India and key international locations and positioning itself as a reliable partner for manufacturers worldwide – through extensive negotiations;
 - ii. Providing cost-effective, high-quality, and customized solutions by optimizing pricing models and financial strategies, developed through years of market research and operational refinement, to ensure cost efficiency and profitability;
 - iii. Conducting confidential market research and expansion strategies, including geographic assessments, competitor analyses, and business development plans, which are critical to sustained growth; and
 - iv. Deploying targeted marketing strategies and brand positioning initiatives to strengthen market penetration and customer engagement.
4. I state that the Plaintiff manufactures products through its own facilities, as well as through subcontractors, suppliers, etc.



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5. I state that the Plaintiff's sustained growth and market position are a direct result of its proprietary and confidential business information, developed through substantial financial, technological, and human capital investments. This includes, but is not limited to, internal research and development data, pricing strategies, supplier and customer lists, financial models, manufacturing techniques, and strategic business plans. These assets are critical to the Plaintiff's competitive advantage, and any unauthorized disclosure or misuse would allow competitors to replicate the Plaintiff's strategies, undercut its pricing, and disrupt established supplier and customer relationships, causing severe and irreparable harm to its market position, operational stability, and financial interests.
6. I state that the Plaintiff has implemented comprehensive confidentiality safeguards, including stringent internal policies. In addition, the Plaintiff has also incorporated explicit confidentiality clauses in all employment agreements and offer letters, which require its employees to maintain the strictest confidentiality regarding all documents, records, and information related to the Plaintiff's business operations, including supplier lists, financial and technical data, vendor relationships, business forecasts, and strategic opportunities. The employment agreements and offer letters also prohibit its employees from misusing the Plaintiff's confidential information, and also restrain them from disclosing such information to third parties.
7. I state that as of December 2024, the Plaintiff has raised a total funding of \$768 million over 16 rounds, with a post-money valuation of \$2.97 billion. Further, the Plaintiff reported an annual revenue of ₹14,600 crore (approximately \$1.76 billion) for the fiscal year ending March 31, 2024.



US

8. I state that the Defendant No. 1 is the former employee of the Plaintiff. He was employed by the Plaintiff under an Appointment Letter dated March 1, 2019 as 'Director - Strategic Initiatives', and remained in employment with the Plaintiff until January 9, 2023, after which he joined Defendant No. 2 (Plaintiff's wholly-owned subsidiary) as 'Business Head'. The Plaintiff states that while gainfully employed with Defendant No. 2, Defendant No. 1 was simultaneously moonlighting with a US based entity/ company named Ayr Energy Inc. ("Ayr Energy"). Thereafter, he exited Defendant No. 2 in February 2025 and is now associated with Ayr Energy. During his employment with the Plaintiff/ Defendant No. 2, Defendant No. 1 misappropriated the Plaintiff's confidential information and subsequently transferred it to Ayr Energy to facilitate and expand its business - in violation of the explicit terms of his Appointment Letter and also, in breach of the trust and confidence reposed in Defendant No. 1 by the Plaintiff.
9. I state that the Defendant No. 2 is a corporation formed under the laws of Delaware and has its office at the address mentioned in the cause title above. It is a wholly-owned subsidiary of the Plaintiff and is engaged in the business of manufacturing and supply chain solutions across various industries, including aerospace, defence, energy, and infrastructure - similar to the Plaintiff. Though separate and distinct legal entities, the Plaintiff and Defendant No. 2 are part of the same corporate group and shareholder structure, and maintain unified operations and strategic oversight. While the Plaintiff has not sought any substantive (or, formal) reliefs against Defendant No. 2, it has been impleaded solely as a formal party to these proceedings - to facilitate the fair and effective adjudication of the matter.

10. I state that on March 1, 2019, the Defendant joined the Plaintiff's employment as 'Director - Strategic Initiatives', until January 9,



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2023. Per the terms of his appointment letter read with the addendum dated March 1, 2019 ("Appointment Letter"), the Defendant was contractually bound to maintain the highest degree of confidentiality concerning the Plaintiff's business operations. This obligation included protecting documents, records and information pertaining to procurement requirements, purchasing, manufacturing, customer lists, financial and technical data, vendors, vendor lists, business forecasts and opportunities, sales and merchandising, marketing plans and information regarding the business or operations of the Plaintiff or its clients ("Confidential Information"). Further, the Defendant was expressly restrained from using such Confidential Information for his personal gain, or disclosing it to any third party, or utilizing it in any manner other than as expressly authorized by the Plaintiff and which was not in furtherance of its business interests. The relevant portion of the Plaintiff's Appointment Letter (read with the Addendum) is reproduced herein below for easy convenience:

"Clause 10 (Confidentiality)

You must always maintain the highest degree of confidentiality and keep as confidential the records and documents and other confidential information relating to the business of the Company, which includes, without limitation any procurement requirements, purchasing, manufacturing, customer lists, financial and technical data, vendors, vendor lists, business forecasts and opportunities, sales and merchandising, marketing plans and information regarding the business or operations of the Company or its clients, which may be known to you or confided in you by any means and you will use such information only in a duly authorized manner in the interest of the Company. You shall comply with all of the Company's instructions for preserving its confidentiality and use confidential information only in furtherance of the Company's business. You further declare that you



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shall not use the confidential information for your use and personal gain or disclose the same to any third party."

(Emphasis Ours)

11. I state that in his capacity as 'Director - Strategic Initiatives', Defendant No. 1 was entrusted with significant responsibilities critical to the Plaintiff's business operations, such as identifying and evaluating growth opportunities, overseeing procurement strategies, managing vendor and customer relationships and formulating strategic business plans, inter alia for its energy-related products and solutions (including, transporters, switchgear and breakers).
12. I state that in the discharge of these duties, the Defendant No.1 was granted unrestricted access to Plaintiff's highly sensitive and Confidential Information, including its trade secrets and technical know-how, pricing lists, customer and supplier data, which has been systematically compiled and refined by the Plaintiff - over the years - through substantial financial, technological, and human capital investments. Such access was given to the Defendant strictly within the scope of his employment and under the conditions of confidentiality outlined in the Appointment Letter. Additionally, given his designation and role in the Plaintiff company, the Defendant was also bound by fiduciary obligations that heightened the duty of care owed to the Plaintiff and required him to act in the best interest of the Plaintiff (by protecting and preserving the Plaintiff's Confidential Information), and to refrain from misusing, transferring, or disclosing it - whether during the course of his employment or after his resignation - for any unauthorized purpose, amongst other things.

13. However, as would be revealed subsequently, Defendant No. 1 has not only indulged in data theft of the Plaintiff's Confidential



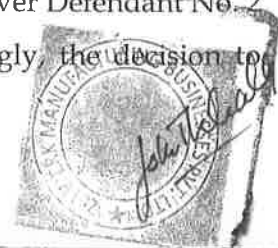
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Information without its knowledge or consent while in employment of the Plaintiff, but has also unlawfully disclosed, disseminated, and/or shared this information with Ayr Energy after the cessation of his employment – in clear breach of his contractual and fiduciary obligations.

14. I state that, on January 10, 2023, Defendant No. 1 transitioned from his employment with the Plaintiff to Defendant No. 2 (a wholly-owned subsidiary of the Plaintiff under common management and control) based in the United States of America. In this regard, the Defendant No. 1 – under an Offer of Employment dated December 26, 2022 (“**US Employment Letter**”) – was appointed as ‘Business Head’ of Defendant No. 2, where he was gainfully employed until February 2025. As Business Head, Defendant No. 1 was entrusted with substantial responsibilities, including identifying opportunities for growth, managing procurement, handling vendor and customer relationships, and developing business strategies.

15. I state that as per the terms of his US Employment Letter, Defendant No. 1 was explicitly obligated to maintain strict non-disclosure of its ‘proprietary’ information (or, confidential information concerning the business and operations of Defendant No. 2). He was also prohibited from engaging in any employment, occupation, consulting, or business activities related to the Plaintiff’s business, or any future business the Plaintiff might enter. Additionally, Defendant No. 1 was restricted from participating in any activities that could conflict with his obligations to Defendant No. 2, including the protection of its Confidential Information.

16. I state that the Defendant No. 1 was appointed by the Plaintiff’s management, which also exercises control over Defendant No. 2 (collectively, “**Zetwerk Group**”). Accordingly, the decision to



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transition Defendant No. 1 to Defendant No. 2 company was based entirely on the trust and confidence placed in Defendant No. 1 due to his seniority within the Plaintiff's organization, and with the expectation that Defendant No. 1 would continue to act in the best interests of the Plaintiff and uphold the highest standards of integrity in the performance of his duties. As part of his relocation, the Defendant No. 2 sponsored Defendant No. 1's application for permanent residency (green card), which also clearly demonstrates the Zetwerk Group/ Plaintiff's trust in Defendant No. 1 and its intent to retain him long-term within the Zetwerk Group.

17. I state that Defendant No. 1 was also granted access to Plaintiff's Confidential Information during his employment with Defendant No. 2. Though separate and distinct legal entities, the Plaintiff and Defendant No. 2 function under a 'common control' and 'management' to maintain unified operations and strategic oversight (as detailed below). This access was necessary due to the operational structure of the Plaintiff and Defendant No. 2, given that Defendant No. 2's business is largely serviced through Indian based suppliers and that Defendant No. 1 was required access to the Plaintiff's Confidential Information to ensure smooth continuity of operations. Furthermore, Defendant No. 1 was granted this access due to the shared management and ownership of the Zetwerk Group, with the expectation that (i) he would handle the Plaintiff's Confidential Information securely and responsibly, in the best interests of both Zetwerk Group and (ii) he uphold the high standards of confidentiality and loyalty expected of him during his prior tenure with the Plaintiff.

18. Notwithstanding, the Plaintiff has cause to believe that Defendant No. 1 has misappropriated its Confidential Information - obtained during his employment with the



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Zetwerk Group - without the Plaintiff's consent and has unlawfully misused it for the benefit of Ayr Energy (which is a third party to the relationship). However, the extent of Ayr Energy's access to and control over the Plaintiff's Confidential Information remains unknown and requires disclosure.

19. I state that in or around February 2025, during the ordinary course of business discussions, it was informed by one of its suppliers that sometime in 2024, Defendant No. 1 - while still employed with the Zetwerk Group - approached them on behalf of Ayr Energy and sought to procure their services.

20. I state that Defendant No. 1 was fully aware that the Plaintiff procured materials and services through a meticulously cultivated network of suppliers at negotiated costs - secured through long-standing business relationships built over the years. Despite this knowledge, Defendant No. 1 unlawfully exploited the Plaintiff's Confidential Information, including supplier lists, to further his own unlawful interests - by securing materials and services, possibly at the same negotiated rates extended to the Plaintiff. The Plaintiff submits that Defendant No. 1, who had no independent access to such data, could not have obtained it but for his employment with the Plaintiff.

21. I state that around 2024-2025, it was in the process of acquiring one power components manufacturing company ("**Power Components Company**") - which is inter alia engaged in the business of supply of transformer raw materials, specifically CRGO laminations and tanks. The Plaintiff had been engaged in negotiations with the Power Components Company for an extended period and, had conducted extensive due diligence, market analysis, and financial assessments - deploying significant resources and strategic planning into this



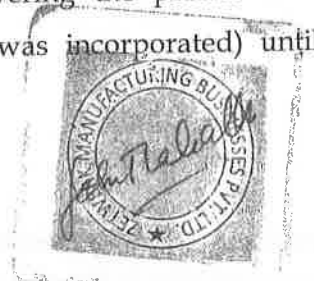
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acquisition. Defendant No. 1, by virtue of his prior employment with the Zetwerk Group, was privy to this highly Confidential Information.

22. In this context, the Plaintiff – in February 2025 – learnt from the market that that Defendant No. 1 (through Ayr Energy) was also targeting the Power Components Company for an acquisition. Notably, on March 10, 2025, Defendant No. 1 sent an email to the Plaintiff using his Ayr Energy email ID (being, anirudh@ayr.energy) and proposed a strategic purchase of the Power Components Company. In this email, Defendant No. 1 suggested that the Plaintiff could participate in the round and claimed that “*the market is incredibly large and both of us are just getting started in the sector*”.

23. I state that while the Power Components Company's existence may have been publicly known, critical details such as the timing, valuation, due diligence findings, and the Plaintiff's strategic interest in acquiring the Power Components Company constituted highly confidential business intelligence. This Confidential Information was accessible to Defendant No. 1 solely due to his prior association with the Zetwerk Group, and in the absence of such association, he had no independent means of gaining access the same and/or showing interest in buying the Power Components Company. Despite this, Defendant No. 1 unlawfully misappropriated and leveraged the Plaintiff's proprietary research and commercial insights to further the business objectives of a third party (Ayr Energy) in which it had commercial interest.

24. In light of the aforementioned misconduct and evident *mala fide* intent, the Zetwerk Group undertook a forensic investigation into Defendant No. 1's systems, covering the period from September 2024 (when Ayr Energy was incorporated) until



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March 2025. This investigation has revealed that Defendant No. 1 deliberately deleted approximately 800 emails from his server right before his departure from the Zetwerk Group's employment. The forensic analysis also revealed that on the same date as the deletions, Defendant No. 1 downloaded over 250 files from the Zetwerk Group's company server – strongly indicating that he illicitly transferred Confidential Information onto an external storage device before erasing evidence of his actions. It is submitted that these preliminary findings establish that the downloaded files contained the Plaintiff's critical business documents, including invoices with supplier data, supplier contracts, and other proprietary records. The Zetwerk Group is presently conducting a detailed investigation to ascertain the full scope and extent of the compromised information.

25. I state that the surreptitious and unlawful manner in which Defendant No. 1 engaged in the theft of the Plaintiff's Confidential Information, as detailed above, unequivocally establishes that he regarded this information as crucial and indispensable for his personal gains and business prospects outside of Zetwerk Group. Further, the surreptitious manner in which the data was stolen also establishes that Defendant No. 1 himself did not regard the Confidential Information as part of the knowledge and experience gained by him during the course of his employment with the Plaintiff, nor did he deem such Confidential Information to be so general as would be available in the public domain. Instead, his deliberate actions confirm that Defendant No. 1 recognized the proprietary and sensitive nature of the Plaintiff's Confidential Information and sought to exploit the same for his own unlawful benefit.

26. I state that the Defendant No. 1 held a position of significant trust and authority within the Zetwerk Group, wherein he was



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inter alia tasked to develop their business of energy-related products and solutions. In this capacity, Defendant No. 1 was granted continued access to the Plaintiff's Confidential Information (including its trade secrets and technical know-how) not only to ensure operational continuity but also to advance the collective business interests of the Zetwerk Group.

27. I state that the Plaintiff reposed implicit faith in Defendant No. 1, relying on his long-standing association with the Zetwerk Group, his senior leadership role, and alignment with the Zetwerk Group's shared strategic interests (which include that of the Plaintiff). This trust is further evidenced by the Plaintiff/Zetwerk Group's decision to transition Defendant No. 1 to a key leadership role at Defendant No. 2 and also, its decision to sponsor Defendant No. 1's green card - an unequivocal demonstration of the Plaintiff's commitment to his long-term association with the Zetwerk Group.

28. I state that the Defendant No. 1 also remained bound by his contractual obligations, including those under his Appointment Letter. The Plaintiff submits that Defendant No. 1's duty to maintain his 'confidentiality' obligations did not lapse merely because he transitioned to a different role within the Zetwerk Group.

29. I state that as its Confidential Information remained its exclusive property, Defendant No. 1 had no right, entitlement, or authorization - express or implied - to store, retain, use, or disclose it following his departure for any purpose whatsoever, much less as a springboard for activities detrimental to the Plaintiff, and to personally profit from the same. At no point did the Plaintiff provide express or tacit consent for Defendant No. 1 to retain or exploit this information post-employment.



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30. I state Defendant No. 1 was duty-bound to act in the Plaintiff's best interests and an affirmative obligation to ensure that the Plaintiff's Confidential Information (including trade secrets and technical know-how) were neither misused nor misappropriated - whether by himself, employees, or third parties.
31. I state that the Defendant No. 1 willfully misused and misappropriated the Plaintiff's Confidential Information and has leveraged the same - including strategic acquisition targets - for his own advantage and in a manner that benefitted third parties. His actions were not inadvertent but a calculated scheme to exploit the Plaintiff's proprietary assets, as evidenced by unauthorized misuse of Confidential Information, potential disclosures to third parties, such as Ayr Energy, and unauthorized transfer of confidential files immediately prior to his departure.
32. I state that the Defendant No. 1's *mala fide* actions constitute tortious misappropriation. Additionally, these acts amount to a breach of contractual obligations under the Appointment Letter as well as a violation of Defendant No. 1's fiduciary and legal duties owed to the Plaintiff.
33. I state that the Defendant No. 1's unlawful misuse and misappropriation of the Plaintiff's Confidential Information, including the Power Components Company's acquisition and (potentially) supplier pricing, and also, their subsequent unauthorized use of such proprietary information - to the Plaintiff's detriment - has wrongfully interfered with the Plaintiff's contractual and business relationships. The Plaintiff submits that by leveraging this Confidential Information, Defendant No. 1 has enabled third parties, such as Ayr Energy (with whom it is associated), to gain an unfair competitive



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advantage over the Plaintiff's commercial dealings, causing tangible economic harm to the Plaintiff. These actions constitute deliberate and unlawful interference with the Plaintiff's business interests.

34. I state that the collective breaches committed by Defendant No.

1 have caused significant and irreparable harm. These breaches continue to harm the Plaintiff. The Plaintiff has invested significant time and resources in cultivating its Confidential Information, supplier relationships, and business intelligence. By unlawfully misappropriating and exploiting the Plaintiff's Confidential Information - including trade secrets, technical know-how, supplier lists and (potentially) pricing, and strategic business data - Defendant No. 1 has gained an undue commercial advantage, directly prejudicing the Plaintiff's market position and business interests, and have compromised its competitive standing. This has also caused disruptions in the Plaintiff's supply chain and impacted the special pricing agreements it had negotiated with those suppliers.

35. I state that if allowed to continue, the Plaintiff verily believes that Defendant No. 1 will continue to misuse the Plaintiff's Confidential Information. This ongoing misuse will not only prejudice the Plaintiff but will also cause further damage to its goodwill and reputation, while disrupting its longstanding business relationships and eroding its competitive edge. In light of the above, the Plaintiff submits that it has no alternative but to seek judicial intervention to prevent the continued misuse of its Confidential Information and to safeguard its market position, goodwill, and commercial interests.

36. I state that the disclosure is essential for enabling a complete understanding of the extent to which Defendant No. 1 has (or,

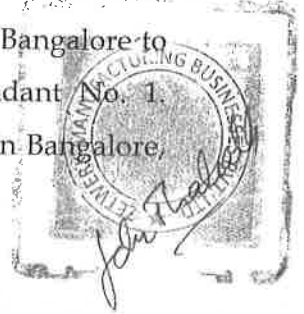


can) misused or disclosed its Confidential Information. This will assist the Plaintiff in assessing the full scope of the harm caused, ensuring that all relevant information is properly secured, and preventing further violations. Additionally, the disclosure will aid in determining any further steps necessary to preserve evidence, seek appropriate remedies, and protect the Plaintiff's commercial interests during the course of the legal proceedings, including seeking any further reliefs as may be warranted.

37. In light of the above, I state that the prima facie case is in its favour. The balance of convenience lies solely in favour of the Plaintiff. Plaintiff submits that no harm, loss, or injury would be caused to the Defendant No. 1 in the case aforesaid reliefs are granted. On the contrary irreparable loss, harm, and injury will be caused to the Plaintiff in the case such reliefs are not granted.

38. The cause of action for the suit arose in February 2025, when one of its suppliers informed the Plaintiff that Defendant No. 1 - while still employed with Defendant No. 2 - had approached them on behalf of Ayr Energy, seeking to procure services. It is further submitted that Defendant No. 1 did so by misusing the Plaintiff's Confidential Information. Given the above, the Plaintiff submits that the limitation period for initiating proceedings to restrain Defendant No. 1 from misusing its Confidential Information does not expire before January 2028 (in accordance with the three-year limitation period from the date of first knowledge). In view of the foregoing, the Plaintiff states that the present suit is therefore filed within limitation.

39. I state that as per the terms of the Appointment Letter, exclusive jurisdiction has been conferred upon the courts in Bangalore to adjudicate disputes between Plaintiff and Defendant No. 1. Additionally, the Plaintiff has its registered office in Bangalore,



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and its Confidential Information is stored on servers located in Bangalore, further establishing a territorial nexus. Given that the unauthorized access, misuse, and misappropriation of such Confidential Information directly prejudice the Plaintiff's rights, the cause of action, at least in part, arises within this jurisdiction. Accordingly, it is submitted that this Hon'ble Court has the jurisdiction to try, entertain, and decide the present suit.

40. I state that there is no pendency of any legal proceedings, either past or present concerning the same subject matter within the knowledge of the Plaintiff Company.

41. I state that, if the accompanying application is allowed as the balance of convenience lies in the favour of the Plaintiff no prejudice will be caused to the Defendants. On the other hand, if accompanying application is not allowed it will lead irreparable harm and injury will be caused to the Plaintiff Company. Wherefore, I pray that this Hon'ble Court may be pleased to allow the accompanying application as prayed for, in the interest of justice and equity.

Wherefore, the prayer in the accompanying Application.

Place: Bangalore

Date: 23/4/25

Identified by me

Advocate

